



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

[HB 2834](#): claims against HOAs; filing fees

CARTER N FLOOR AMENDMENT

1. Removes language instructing ADRE to require a planned community's compliance with relevant portions of statute regarding an association's plat and declaration.
2. Affirms ADRE is not required to enforce any statutory provision relating to planned communities as part of administering State subdivision laws.

CARTER N FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2834
(Reference to COMMERCE Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
>>Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~>>Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 32-2199.01, Arizona Revised Statutes, is amended
3 to read:

4 32-2199.01. Hearing: rights and procedures

5 A. For a dispute between an owner and a condominium association or
6 planned community association that is regulated pursuant to title 33,
7 chapter 9 or 16, the owner or association may petition the department for
8 a hearing concerning violations of condominium documents or planned
9 community documents or violations of the statutes that regulate
10 condominiums or planned communities. The petitioner shall file a petition
11 with the department and pay a filing fee ~~in an amount to be established by~~
12 ~~the commissioner~~ OF ~~[\$100]~~ [\$300] PER ISSUE CLAIMED IN THE PETITION. The
13 filing fee shall be deposited in the condominium and planned community
14 hearing office fund established by section 32-2199.05. On dismissal of a
15 petition at the request of the petitioner before a hearing is scheduled or
16 by stipulation of the parties before a hearing is scheduled, the filing

1 fee shall be refunded to the petitioner. The department does not have
2 jurisdiction to hear:

3 1. Any dispute among or between owners to which the association is
4 not a party.

5 2. Any dispute between an owner and any person, firm, partnership,
6 corporation, association or other organization that is engaged in the
7 business of designing, constructing or selling a condominium as defined in
8 section 33-1202 or any property or improvements within a planned community
9 as defined in section 33-1802, including any person, firm, partnership,
10 corporation, association or other organization licensed pursuant to this
11 chapter, arising out of or related to the design, construction, condition
12 or sale of the condominium or any property or improvements within a
13 planned community.

14 B. The petition shall be in writing on a form approved by the
15 department, shall list the complaints and shall be signed by or on behalf
16 of the persons filing and include their addresses, stating that a hearing
17 is desired, and shall be filed with the department.

18 C. On receipt of the petition and the filing fee, the department
19 shall mail by certified mail a copy of the petition along with notice to
20 the named respondent that a response is required within twenty days after
21 mailing of the petition showing cause, if any, why the petition should be
22 dismissed.

23 D. After receiving the response, the commissioner or the
24 commissioner's designee shall promptly review the petition for hearing
25 and, if justified, refer the petition to the office of administrative
26 hearings. The commissioner may dismiss a petition for hearing if it
27 appears to the commissioner's satisfaction that the disputed issue or
28 issues have been resolved by the parties.

29 E. Failure of the respondent to answer is deemed an admission of
30 the allegations made in the petition, and the commissioner shall issue a
31 default decision.

32 F. Informal disposition may be made of any contested case.

33 G. Either party or the party's authorized agent may inspect any
34 file of the department that pertains to the hearing, if the authorization
35 is filed in writing with the department.

36 H. At a hearing conducted pursuant to this section, a corporation
37 may be represented by a corporate officer, employee or contractor of the
38 corporation who is not a member of the state bar if:

39 1. The corporation has specifically authorized the officer,
40 employee or contractor of the corporation to represent it.

41 2. The representation is not the officer's, employee's or
42 contractor of the corporation's primary duty to the corporation but is
43 secondary or incidental to the officer's, employee's or contractor of the
44 corporation's, limited liability company's, limited liability
45 partnership's, sole proprietor's or other lawfully formed and operating
46 entity's duties relating to the management or operation of the
47 corporation.

1 <<Sec. 2. Section 33-1270, Arizona Revised Statutes, is amended to
2 read:

3 33-1270. Department of real estate; enforcement

4 A. ~~[Nothing in]~~ This chapter ~~[shall be construed to]~~ [DOES NOT]
5 increase or decrease or otherwise affect any rights or powers granted to
6 the commissioner of the department of real estate under title 32, chapter
7 20 with respect to the issuance of public reports.

8 B. The commissioner of the department of real estate shall require
9 compliance with ~~[section]~~ [SECTIONS] 33-1215 and ~~[section]~~ 33-1219 in
10 connection with the administration of the subdivision laws of this state
11 under title 32, chapter 20, article 4. The commissioner ~~[shall]~~ [IS] not
12 ~~[be]~~ required to administer or enforce any other provisions of this
13 chapter [BUT SHALL ADMINISTER THE DISPUTE RESOLUTION PROCESS AUTHORIZED
14 UNDER SECTION 32-2199.01].>>

15 <<Sec. 3. Title 33, chapter 16, Arizona Revised Statutes, is
16 amended by adding article 2, to read:

17 ARTICLE 2. ADMINISTRATION

18 33-1831. State real estate department; enforcement

19 [A. THIS CHAPTER DOES NOT INCREASE OR DECREASE OR OTHERWISE AFFECT
20 ANY RIGHTS OR POWERS GRANTED TO THE STATE REAL ESTATE COMMISSIONER UNDER
21 TITLE 32, CHAPTER 20 WITH RESPECT TO THE ISSUANCE OF PUBLIC REPORTS.

22 B. THE STATE REAL ESTATE COMMISSIONER] ~~{{SHALL REQUIRE COMPLIANCE~~
23 ~~WITH THE RELEVANT PORTIONS OF SECTIONS 33-1215 AND 33-1219 FOR PLANNED~~
24 ~~COMMUNITIES IN CONNECTION WITH}}~~ ~~{{IS NOT REQUIRED TO ENFORCE ANY~~
25 ~~PROVISION OF THIS CHAPTER AS PART OF}}~~ [THE ADMINISTRATION OF THE
26 SUBDIVISION LAWS OF THIS STATE UNDER TITLE 32, CHAPTER 20, ARTICLE 4]
27 ~~{{. THE STATE REAL ESTATE COMMISSIONER IS NOT REQUIRED TO ENFORCE ANY~~
28 ~~OTHER PROVISIONS OF THIS CHAPTER}}~~ [BUT SHALL ADMINISTER THE DISPUTE
29 RESOLUTION PROCESS AUTHORIZED UNDER SECTION 32-2199.01].>>

30 Enroll and engross to conform

31 Amend title to conform

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